

B. LEGAL ANALYSIS

Where “a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction...” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (*Id.* at subd. (c).)

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (*Id.* at subd. (c).)

Because Plaintiff failed to serve a timely response to the Requests for Admissions, either prior to the filing of the motion or before hearing on the motion, Defendant is entitled to an order deeming genuine all documents identified in the requests and further deeming admitted all matters specified in the requests.

Based on the foregoing, the motion is GRANTED.

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Okell Holdings, LLC et al v. Quantum Limited Partners, LLC et al 26CV001310

MOTION BY DEFENDANTS TO COMPEL ARBITRATION AND STAY ACTION

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order. A Review Hearing Re: Status of Arbitration is set for March 4, 2027 at 8:30 a.m. in Dept. A. The Case Management Conference on December 1, 2026 is VACATED.

Defendants Quantum Limit Partners, LLC, Glenn C. Rice, and Cynthia Anne Hoy (erroneously sued as Cynthia Rice) (“Defendants”) move, pursuant to the California Arbitration Act (Code Civ. Proc. §§ 1281.2, 1281.4) and the Federal Arbitration Act (9 U.S.C. §§ 3, 4), for an order (i) compelling arbitration of the six causes of action set forth in Plaintiffs’ Verified Complaint and (ii) staying this action pending completion of the arbitration.

Plaintiffs filed a Limited Opposition, in which they state they “do not oppose arbitration of the substantive claims alleged in the Verified Complaint. This limited opposition concerns only the scope of the requested stay and seeks confirmation that any order compelling arbitration preserves this Court’s authority, pursuant to the parties’ Settlement Agreement and Code of Civil Procedure section 1281.8, to consider future requests for provisional relief in aid of arbitration.” (Opp., 1:22-26.) Plaintiffs request that “[a]ny order compelling arbitration should expressly preserve this Court’s jurisdiction . . . to consider any future request for provisional relief in aid of arbitration. Accordingly, the stay should not preclude either party from seeking such relief if the statutory standard is satisfied.” (Opp., 5:10-13.)

As Defendants note in Reply, the Proposed Order provides: “Pursuant to Code of Civil Procedure section 1281.4, this action is stayed pending completion of the arbitration, *except for proceedings concerning provisional relief permitted by Code of Civil Procedure section 1281.8.*” (8/5/26 Proposed Order. Emphasis added.) The Court further notes, as Plaintiffs acknowledge in their Limited Opposition, that Defendants’ Motion expressly states the requested stay “will not interfere” with injunctive relief, noting that “[b]oth the settlement agreement (paragraph 17.1) and the California Arbitration Act (Code Civ. Proc., § 1281.8, subd. (b)) authorize a party to seek injunctive relief from the Court even if arbitration is pending.” (Mem., 12:6-9.)

Thus, Plaintiffs’ concern regarding the scope of the stay appears moot. Because the motion is otherwise unopposed, and Plaintiffs expressly agree to arbitration, the motion is GRANTED.

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In The Matter of Sydney Maria Lynn Delima

26CV001413

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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****at 1:30 p.m.****

Reed Woodson v. City of St. Helena et al

26CV000379

PETITIONER’S MOTION FOR JUDGMENT ON THE PEREMPTORY WRIT OF ADMINISTRATIVE MANDATE

APPEARANCE REQUIRED. The Court will hear argument from the parties regarding the below tentative ruling on September 1, 2026, at 1:30 p.m. in Dept. B. The parties need not request or notice a request for oral argument, as otherwise required by Local Rule.

TENTATIVE RULING: The Petition is DENIED.

A. PRELIMINARY MATTERS

By the instant litigation Mr. Woodson seeks an order directing the St. Helena City Council to vacate and reconsider its November 25, 2025, Ruling, made after hearing on the matter on November 18, 2025, upholding the October 10, 2025, decision by Joseph M. Leach, as administrative hearing officer, assessing transient occupancy tax (TOT), penalties, and interest against Mr. Woodson in the amount of \$48,566.05.

B. ADMINISTRATIVE RECORD